

BEFORE THE FEDERAL MARITIME COMMISSION

MCS INDUSTRIES INC.,
Complainant

v.

MSC MEDITERRANEAN SHIPPING COMPANY S.A.,
Respondent.

DOCKET NO. 21-05

**RESPONDENT MSC MEDITERRANEAN SHIPPING COMPANY S.A.'S
MOTION FOR CONFIDENTIAL TREATMENT**

Respondent MSC Mediterranean Shipping Company S.A. ("MSC") respectfully moves for confidential treatment of the non-public version of the MSC's Response Brief on Remand and portions of Exhibits 1, 3, and 4, pursuant to Rule 5(b) of the Federal Maritime Commission's Rules of Practice and Procedure, 46 C.F.R. § 502.5(b).

MSC requests confidential treatment of the following portions of the Brief:

page 4, lines 13-14

page 5 lines 15-17

footnote 3 lines 3-4

MSC also requests confidential treatment of the following portions of the Exhibits:

Exhibit 1

pages 134:18-138:2

page 141 redact the number in lines 23 and 25.

Exhibit 3

redact the table at the end of the exhibit.

Exhibit 4

Redact the columns on the table listing the cost, FEU amounts, ETD, ETA, week, and container size of other carriers MCS contracted with from Tianjin and Qingdao to California.

MCS requests confidential treatment because this material was labelled Confidential OCEO by Complainant pursuant to the Confidentiality Stipulation and Protective Order entered by Your Honor on November 18, 2021. Complainant also asserts that the identities of other carriers with which Complainant has contracted, along with testimony as to how those carriers have performed, are confidential business information and are subject to Complainant's confidentiality obligations to those carriers under their respective contractual agreements.

Pursuant to Rule 502.5(b), MSC is providing with this motion (1) the non-public version of the Response Brief on Remand and Exhibits and (2) the public version of the Response Brief on Remand and Exhibits, redacted to remove the confidential information identified herein. This public version can be placed on the docket.

WHEREFORE, MSC respectfully requests that the non-public version of the Response Brief on Remand and Exhibits be designated as confidential as noted herein, and that the version with those confidential portions redacted be placed on the docket as the public version of its filing.

Respectfully submitted,

/s/ John Longstreth

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MSC Mediterranean Shipping Company S.A.

February 5, 2024

CERTIFICATE OF SERVICE

I certify that, on February 5, 2024, a true and current copy of the foregoing Motion for Confidential Treatment was served via electronic mail on the following:

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